



Local Government Act 1978

1978 CHAPTER 39

An Act to amend the Local Government Act 1974 with respect to investigations by Local Commissioners and the Local Government (Scotland) Act 1975 with respect to investigations by the Commissioner for Local Administration in Scotland; and for purposes connected therewith. [20th July 1978]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. At the end of section 31 of the Local Government Act 1974 and section 29 of the Local Government (Scotland) Act 1975 there shall be added the following subsection:—
 - “(3) In any case where—
 - (a) a report is laid before an authority under subsection (1) above, and
 - (b) on consideration of the report, it appears to the authority that a payment should be made to, or some other benefit should be provided for, a person who has suffered injustice in consequence of maladministration referred to in the report,

Power for authorities to incur expenditure to remedy injustices caused by maladministration.

1974 c. 7.
1975 c. 30.

the authority may incur such expenditure as appears to them to be appropriate in making such a payment or providing such a benefit.”

Short title
and extent.

2.—(1) This Act may be cited as the Local Government Act 1978.

(2) This Act does not extend to Northern Ireland.